Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM3
HON. Judge Erin Rowe
Date: 07/29/26

Court Room Rules and Notices

#	Case Name	Tentative
1	Nisttahuz – Trust (2019 – 1063054)	**MOTION FOR RECONSIDERATION** Intervenors Reid & Hellyer, APC'S Motion for Reconsideration (ROA 1328) is **DENIED.** On May 1, 2026, the court issued an order denying Intervenors' motion for attorney fees. By their motion, Intervenors ask the court to reconsider that order pursuant to Code of Civil Procedure section 1008 (Section 1008). Section 1008 reads, in pertinent parts: "(a) When an application for an order has been made to a judge, or to a court, and refused in whole or in part . . . any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and *based upon new or different facts, circumstances, or law*, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown. . . . "(e) This section specifies the court's jurisdiction with regard to applications for reconsideration of its orders and renewals of previous motions, and applies to all applications to reconsider any order of a judge or court, or for the renewal of a previous motion, whether the order deciding the previous matter or motion is interim or final. No application to reconsider any order or for the renewal of a previous motion may be considered by any judge or court *unless made according to this section*." (Emphasis added.)

		The requirement of "new or different facts, circumstances or law" is jurisdictional. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500 ["a court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon 'new or different facts, circumstances, or law'"].) Further, a party seeking reconsideration pursuant to Section 1008 must explain why the allegedly new or different facts, circumstances or law were not previously presented. (*Evan Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 833.) "'The burden under section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it' at the original hearing." (*Craddock v. Hilton Domestic Operating Co, Inc.* (2025) 112 Cal.App.5th 284, 304.) The fee motion was denied, in part, because Intervenors failed to show (1) the requested fees had not already been paid and (2) their fee agreement did not address statutory fees. Intervenors were made aware of the need to make those showings in an opinion issued by the Fourth Appellate District, Division Three on October 21, 2025—more than three months before they filed their renewed motion for fees. The relevant portion of that opinion reads: "Interveners fail to show they are entitled to statutory fees under *Flannery* [*v. Prentice* (2001) 26 Cal.4th 572] for several reasons . . . Third, Interveners have not shown they satisfy *Flannery'*s requirements that all fees directly attributable to the financial elder abuse claim have not already been paid and that their fee agreement does not address statutory fees." (*Lombardi v. Meier Law* (October 21, 2025, G064289) [nonpub. opn.] at pp. 9-10.) By their motion for reconsideration, Intervenors attempt to address their failure to make the required showings by belatedly submitting the relevant fee agreements. (Motion at 4:10-12 ["The January 10, 2019 Stafford Law retainer and the March 1, 2021 Reid & Hellyer retainer now fill that evidentiary gap"].) They argue the now-submitted retainer agreements are "new" facts "because they were not part of the record on the renewed motion [for fees] and are now submitted to address the precise evidentiary deficiency identified in the Court's order"]. (Motion at 4:24-26.) As set forth above, in order to meet the jurisdictional threshold for a Section 1008 motion, Intervenors must show they could not, with reasonable diligence, have discovered or produced the newly offered evidence at the original hearing. (*Craddock, supra,* 112 Cal.App.5th 284 at 304.) Intervenors do not make the required showing regarding the newly offered 2019 and 2021 retainer agreements. Intervenors also argue the motion for reconsideration is supported by a "new" fact, i.e. a retainer agreement between

themselves and Pamela Lund—the current trustee—dated March 31, 2026. Intervenors argue this new retainer agreement transforms their request for fees from an intervenor's request for fees to a trustee's request for payment of fees. Intervenors also argue the March 31, 2026 retainer agreement creates a "new" circumstance because it includes a term that the first $100,000 of any fees recovered will be used to reimburse the trust.

The retainer agreement was entered into after the renewed fee motion was filed (02/03/26) but before the reply brief was filed (04/01/26) and the hearing on the motion (04/22/26). Accordingly, it could, with reasonable diligence, have been produced" before the original hearing. The retainer agreement is neither a "new" fact nor creates a "new" circumstance.

In the absence of any new facts, law, or circumstances, the court is without jurisdiction to consider the motion for reconsideration under Section 1008.

However, a court may always reconsider its own ruling, even at a party's suggestion outside of Section 1008. As explained in *Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1105: "We cannot prevent a party from communicating the view to a court that it should reconsider a prior ruling (although any such communication should never be ex parte). We agree that it should not matter whether the judge has an unprovoked flash of understanding in the middle of the night or acts in response to a party's suggestion. If a court believes one of its prior interim orders was erroneous, it should be able to correct that error no matter how it came to acquire that belief." Under that authority, the court reconsiders its prior ruling, taking into account the arguments of the parties on the motion for reconsideration (which was fully briefed).

In its original ruling, the court denied Intervenors' request for attorneys' fees based, in part, on a finding that the requested fees were "unreasonably inflated" creating "a special circumstance permitting the trial court to . . . deny [fees] altogether. (*Chavez v. City of Los Angeles* (2010) 47 Cal.4th 970, 990 (*Chavez*).) Intervenors argue *Chavez* is not available in this case because it addressed an award of discretionary fees while the fees awarded here, on a finding of financial elder abuse, are mandatory.

Welfare & Institutions Code section 15657.5, which governs the award of fees, reads in pertinent part: "Where it is proven by a preponderance of the evidence that a defendant is liable for financial abuse, as defined in Section 15610.30, in addition to compensatory damages and all other remedies otherwise provided by law, the court ***shall*** award to the plaintiff reasonable attorney's fees and costs." (Emphasis added.) An award of fees based on a finding of financial elder abuse is usually mandatory. However, in discussing a mandatory award of fees on a separate statute with similar language (Code of Civ. Proc. § 425.16) the Fourth Appellate District, Division Three explained:

> "Because the Legislature specified the prevailing defendant 'shall be entitled to recover his or her attorney's fees and costs' (§ 425.16, subd. (c)), an award is usually mandatory. The Legislature, however, did not intend recovery of fees and costs as a windfall. The prevailing party is entitled to a reasonable award; consequently, the trial court need not simply award the sum requested. To the contrary, ascertaining the fee amount is left to the trial court's sound discretion. Trial judges are entrusted with this discretionary determination because they are in the best position to assess the value of the professional services rendered in their courts.
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> "Inflated fee requests constitute a special circumstance. In emphasizing that a trial court retains the discretion to award attorney fees in an amount that is *less* than the lodestar amount, the *Ketchum* court noted, 'To the extent a trial court is concerned that a particular award is excessive, it has broad discretion to adjust the fee downward or deny an unreasonable fee altogether.' Specifically, the *Ketchum* court stated, '"A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether.'"
>
> "The *Serrano IV* court explained, '"If ... the Court were required to award a reasonable fee when an outrageously unreasonable one has been asked for, claimants would be encouraged to make unreasonable demands, knowing that the only unfavorable consequence of such misconduct would be reduction of their fee to what they should have asked in the first place. To discourage such greed, a severer reaction is needful....'" The *Serrano IV* court noted in a lengthy citation the numerous means a party may employ to inflate a fee request, justifying denial of fees altogether: 'See, e.g., . . . *Lund v. Affleck* (1st Cir. 1978) 587 F.2d 75, 77 [if initial claim is 'exorbitant' and time unreasonable, court should 'refuse the further compensation']; . . . *Farris v. Cox* (N.D. Cal. 1981) 508 F.Supp. 222, 227 [time on fee petition denied for

'overreaching']; *Vocca v. Playboy Hotel of Chicago, Inc.* (N.D. Ill. 1981) 518 F.Supp. 900, 901–902 [fee denied in entirety on ground of counsel's dilatoriness and hours claimed for clerical work]; *Jordan v. United States Dept. of Justice* (D.D.C. 1981) 89 F.RD, 537, 540 [revd. (1982) 223 U.S. App.D.C. 325 [691 F.2d 514]] [fee denied in entirety on ground of unreasonable request and inadequate documentation].)'"

(*Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1321–1322 (*Christian Research*), certain citations omitted.)

In support of their argument that mandatory fees may never be denied, even when the requestd fees are inflated, Intervenors cite *Almanor Lakeside Villas Owners Assn. v. Carson* (2016) 246 Cal.App.4th 761. Although certain language in *Almanor* may be interpreted as supporting Intervenors' position, *Almanor* does not address the question of whether mandatory fees may be denied when the requesting party has overinflated the amount of fees requested. Rather, it addresses the issue of whether the court can deny fees pursuant to Code of Civil Procedure section 1033(a) when the amount recovered is less than the statutory minimum to be classified as an unlimited civil matter. (*Id.* at pp. 777-779.) That is not the question here.

The language from *Chavez* that the court relied on in denying Intervenors' request for fees (i.e., "A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether") was first uttered by the California Supreme Court in *Serrano v Unruh* (1982) 32 Cal.3d 621, 635 (*Serrano*) and repeated in *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1137 (*Ketchum*) before being quoted in *Chavez*. While *Chavez* and *Serrano* addressed discretionary fee awards, *Ketchum*—like *Christian Research*—addressed a mandatory fee award. Based on the language from *Ketchum* and *Christian Research*, this court is persuaded that whether the fee award is mandatory or discretionary, the court may deny fees altogether where—as here—the requesting counsel submits an unreasonably inflated fee request.

Accordingly, for the reasons set forth more fully in the court's May 1, 2026 ruling (e.g., failure to acknowledge amounts already paid, request for fees incurred before the financial elder abuse claim was asserted, failure to apportion the fees, billing errors, and overbilling), the court declines to alter its ruling.

The court finds Intervenors' motion for fees is unreasonably inflated within the meaning of *Serrano, Ketchum, Chavez,* and *Christian Research* and the motion is **DENIED**.

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<tr><td></td><td>Vaupel – Trust (2022 – 01298653)</td><td>
MOTION TO DISMISS
Respondent Lynda Roese-Vaupel’s Motion to Dismiss Amended Petition for Claim and Issue Preclusion (ROA 399) is DENIED.
Respondent’s Request for Judicial Notice (ROA 37) is GRANTED.
By her motion, Respondent asks this court to dismiss the Amended Petition (Amended Petition) filed by Petitioner Michael P. Vaupel on January 29, 2026 (ROA 391) on the ground the Amended Petition seeks to relitigate issues and claims already decided against Petitioner in the court’s Final Decision (ROA 339) on an earlier petition (ROA 36) and is barred by the doctrines of claim and issue preclusion.
<u>Nature of the motion</u>. Respondent does not identify the statutory provision authorizing the procedural vehicle of a motion to dismiss. The only Probate Code provisions authorizing motions to dismiss are section 2033—allowing a party to bring a motion to dismiss a petition for conservatorship when “the proposed is a member of an Indian tribe with jurisdiction”—and section 4543—allowing a party to move to dismiss an action concerning powers of attorney, when the proceeding “is not reasonably necessary for the protection of the interests of the principal or the principal’s estate.” Neither section is applicable here.
Motions to dismiss are also authorized in certain types of civil proceedings (and probate proceedings are, in part, subject to the subject to the Code of Civil Procedure, see Probate Code, § 1000). Motions to dismiss in civil proceedings include motions to dismiss for lack of jurisdiction (Code of Civ. Proc., § 410.30) or motions to dismiss for failure to prosecute (Code of Civ. Proc., §§ 583.110 et seq.). Respondent’s motion does not fall within either statute.
Respondent’s motion to dismiss is brought on the grounds of claim and issue preclusion—grounds that can be raised by demurrer, a motion for judgment on the pleadings, or a motion for summary judgment. Because the motion fails to meet the procedural requirements for either a demurrer or a motion for summary judgment, the court deems it a motion for judgment on the pleadings and addresses it as such.
“Judgment on the pleadings is akin to a demurrer and is properly granted only if the [pleading] does not state facts sufficient to state a cause of action against that [respondent]. The grounds for the motion must appear on the face of the [pleading], and in any matter subject to judicial notice. The
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		court accepts as true all material factual allegations, giving them a liberal construction, but it does not consider conclusions of fact or law, opinions, speculation, or allegations contrary to law or judicially noticed facts." (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861– 862, internal citations and quotation marks omitted.) **<u>Brief relevant procedural history</u>**. On August 22, 2023, Petitioner filed a petition for recovery of property from Respondent (850 Petition). The 850 Petition also sought removal of Respondent as co-trustee of the Michael C. Vaupel Trust dated March 6, 2007 as amended and restated (Trust). The 850 Petition alleged Respondent wrongfully transferred or withdrew Trust funds from certain accounts between May 11, 2022 and December 13, 2022. (ROA 239 at 2:17-5:12.) The 850 Petition, as supplemented, was tried on May 21, 22, & 27, 2025. The court issued a final decision on July 2, 2025. The court ruled Respondent breached her duties as trustee of the Trust in various ways. The court found Respondent's withdrawal of $406,428.24 of Trust funds between August 8, 2022 and December 14, 2022 was a breach of her fiduciary duties. However, the court found Petitioner could not pursue claims on Respondent's withdrawals before the settlor's death on August 4, 2022 because Petitioner had not alleged the settlor lacked capacity or was subjected to undue influence. ("Neither Settlor's lack of capacity nor undue influence are alleged in the 850 Petition (ROA 239), or Petitioner's Trial Brief (ROA 289). Nor were they argued in closing arguments." (ROA 339 at 8:23-25.) In the absence of such allegations, Respondent's only duty was to the settlor and Petitioner could not pursue a claim of breach of any fiduciary duty. On January 29, 2026, Petitioner filed an "Amended Petition for: [¶] (A) Order Compelling Lynda Roese-Vaupel to Redress Breaches of Trust; and [¶] (2) Recovery of Property Wrongfully Transferred" (Amended Petition). The designation of an "amended" petition is confusing because the 850 Petition had been tried and decided and there was no other petition to be amended. Despite the confusing title, the Amended Petition asserts separate wrongdoing by Respondent, specifically the sale of seven commercial properties and retention of the sales proceeds, including through transfers from and deposits certain bank accounts. The Amended Petition also alleges allegedly wrongful transfers distinct from those alleged in the 850 Petition. (ROA at 4:12-12:28.) **<u>Motion for judgment on the pleadings</u>.** Respondent tacitly concedes most if not all of the specific acts of wrongdoing alleged in Amended Petition are distinct from those alleged in the 850 Petition. She argues, however, that the judgment on the 850 Petition bars Petitioner from pursuing the claims in the Amended Petition under the doctrines of claim preclusion and issue preclusion. Respondent has the burden on these

		arguments. (*Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 489 [the "party who asserts claim or issue preclusion as a bar to further litigation bears the burden of proving that the requirements of the doctrine are satisfied"].) **<u>Claim Preclusion</u>.** "Claim preclusion prevents relitigation of entire causes of action. [Citation.] Claim preclusion applies only when 'a second suit involves (1) the same cause of action (2) between the same parties [or their privies] (3) after a final judgment on the merits in the first suit.'" (*Samara v. Matar* (2018) 5 Cal.5th 322, 326–327.) Based solely on the Final Decision on the 850 Petition, Respondent argues the Amended Petition, which raises different alleged wrongdoing and alleges new claims of lack of capacity and undue influence, is barred under the doctrine of claim preclusion. The first requirement for application of claim preclusion is that the second claim addresses the same cause of action as the first. A "cause of action is the right to obtain redress for a harm suffered, regardless of the specific remedy sought or the legal theory (common law or statutory) advanced." (*Boeken v. Philip Morris USA, Inc.* (2010) 48 Cal.4th 788, 798, internal quotation marks and citations omitted Under this theory, a 'cause of action' is comprised of a primary right possessed by the plaintiff, a corresponding duty imposed upon the defendant, and a wrong done by the defendant which is a breach of such primary right and duty. The primary right is the plaintiff's right to be free of the particular injury, regardless of the legal theory on which liability is premised or the remedy which is sought. Thus, it is the harm suffered that is the significant factor in defining the primary right at issue." (*City of Oakland v. Oakland Policy & Fire Retirement System* (2014) 224 Cal.App.4th 210, 228; see *Cal. Sierra Development, Inc. v. George Reed, Inc.* (2017) 14 Cal.App.5th 663, 675-676 ["California law approaches the issue by focusing on the 'primary right' at stake: if two actions involve the same injury to the plaintiff and the same wrong by the defendant then the same primary right is at stake even if in the second suit the plaintiff pleads different theories of recovery, seeks different forms of relief and/or adds new facts supporting recovery"].) While the type of wrongdoing alleged in the 850 Petition and the Amended Petition are similar, i.e. breach of fiduciary duty, the two petitions do not assert either the same wrongs or the same injuries. Looking, as the court must, only to the allegations of the Amended Petition and the documents judicially noticed in connection with the motion, Respondent has not met her burden as to claim preclusion and the motion for judgment on the pleadings is **DENIED** on that ground. **<u>Issue Preclusion</u>.** The doctrine of issue preclusion applies "(1) after final adjudication (2) of an identical issue (3) actually

		litigated and necessarily decided in the first suit and (4) asserted against one who was a party in the first suit or one in privity with that party." (*DKN Holdings LLC v. Faerber* (2015) 61 Cal.4th 813, 825.) "[A]n issue was actually litigated in a prior proceeding if it was properly raised, submitted for determination, and determined in that proceeding. The 'identical issue' requirement addresses whether identical factual allegations are at stake in the two proceedings, not whether the ultimate issues or dispositions are the same. And the 'necessarily decided' prong means only that the issue not have been "entirely unnecessary" to the judgment in the initial proceeding. In considering whether these criteria have been met, courts look carefully at the entire record from the prior proceeding, including the pleadings, the evidence, the jury instructions, and any special jury findings or verdicts." (*In re Marriage of Brubaker & Strum* (2021) 73 Cal.App.5th 525, 537-538, internal citations and quotation marks omitted; *see also Ayala v. Dawson* (2017) 13 Cal.App.5th 1319, 1326-1327 ["'the pleadings and proof in each case must be carefully scrutinized to determine whether a particular issue was raised even though some legal theory, argument or "matter" relating to the issue was not expressly mentioned or asserted'"].) "[T]he offensive use of collateral estoppel is more closely scrutinized than the defensive use of the doctrine." (*White Motor Corp. v. Teresniski* (1989) 214 Cal.App.3d 754 763.) Respondent did not provide the court with the trial transcript, so the court cannot "carefully look" at the entire record as required. Further, two of the four elements essential to imposition of the doctrine of issue preclusion are not present. First, the Amended Petition and the 850 Petition do not raise identical issues because the factual allegations are distinct. (*DKN Holdings LLC v. Faeber* (2015) 61 Cal.4th 813, 824 ["'The "identical issue" requirement addresses whether "identical factual allegations" are at stake in the two proceedings, not whether the ultimate issues or dispositions are the same"'"]; see *Chern v. Bank of America* (1976) 15 Cal.3d 866, 871–872 ["'[I]f the very same facts and no others are involved in the second case, . . . the prior judgment will be conclusive as to the same legal issues which appear. . . . But if the relevant facts in the two cases are separable, even though they may be similar or identical, [issue preclusion] does not govern the legal issues which recur in the second case'"].) Second, the issue of the settlor's lack of capacity and the claim of undue influence were not "actually litigated" in connection with the 850 Petition. "'Whether an issue was actually litigated in a prior action ... is generally determined by ascertaining whether the parties to the original action disputed the issue and whether that issue subsequently was resolved by the court entertaining the action.'" (*Hardy v. America's Best Home Loans* (2014) 232 Cal.App.4th 795, 806.) Here, the issues of lack of

		capacity and undue influence were not even “alleged in the 850 Petition, or Petitioner’s Trial Brief.” (ROA 339 at 8:23-25.) Looking, as the court must, only to the allegations of the Amended Petition and the documents judicially noticed in connection with the motion, Respondent has not met her burden as to issue preclusion and the motion for judgment on the pleadings is **DENIED** on that ground. Petitioner is directed to give notice.